Board Minutes 2026-05-12 Series A Waiver

Record

Administrative matters were considered.

The waiver expires after 60 days.

The meeting then continued to other business.

Deliberation and Resolutions

For Board Minutes 2026-05-12 Series A Waiver, the secretary recorded attendance, quorum, disclosed interests, materials reviewed, questions raised, advice received, and the alternatives considered before the vote.

Each resolution identifies the approved document or action, any condition or required consent, the officers authorized to implement it, and the limits of that authority.

The certification preserves the adoption method, abstentions, effective time, exhibits, and continuing record-keeping obligations.

1. Notice of the Special Meeting and Waiver of Notice

A special meeting of the Board of Directors of Helioscope Robotics, Inc. was convened at 9:30 a.m. Pacific time on May 12, 2026 at the Company's offices in Fremont, California. Two directors participated by telephone on an open line for the whole of the meeting and were audible to all other participants throughout. The Secretary confirmed that written notice of the time, place and stated purposes of the meeting had been transmitted to each director at the address carried in the Company's records five business days beforehand. (8 Del. C. § 141)

One director received that notice at a forwarding address after the notice period had begun and, before the meeting was called to order, executed and delivered a written waiver of notice, which the Secretary appended to this record. No director objected to the holding of the meeting or to the transaction of any item of business at it, and none asked that an item be held over to a later meeting for want of notice or for want of time to read the materials.

The Chair stated the two purposes for which the meeting had been called: to consider the seniority accommodation requested by the prospective lead investor in the Series B financing, and to consider the adoption of the independent valuation of the Company's common stock delivered since the last meeting. The Chair noted that no other item would be voted on, although management would take questions on operating matters at the end.

2. Attendance, Quorum, and Persons Present by Invitation

A quorum of the directors then in office was present when the meeting was called to order and remained present until adjournment. The Chair presided. Lucia Marchetti, Chief Operating Officer, acted as Secretary of the meeting and was directed to keep the record. The Chief Financial Officer attended for the whole of the meeting and was excused only from the closed portion described below.

Counsel to the Company, Whitmore & Lang LLP, attended by invitation for the first agenda item and answered questions on the effect of the requested accommodation on the existing preferred stock terms. A representative of Larkspur Valuation Advisors, LLC attended for the second agenda item, presented the firm's work, and left the meeting before the Board deliberated on adoption. Neither invitee voted or was counted for quorum.

The attendance record entered by the Secretary is set out below. It distinguishes directors from officers and invitees, records the manner of participation, and notes for each director whether an interest in either agenda item was disclosed.

Exhibit A - Attendance record kept by the Secretary of the May meeting

Name	Capacity	Manner of participation	Present for	Interest disclosed
Renata Okonjo	Director and Chief Executive Officer	In person	Both items	None disclosed
Dashiell Vance	Director and Chief Technology Officer	In person	Both items	Secondary sale of own shares
Ingrid Solvang	Director, Series A	By telephone	Both items	Affiliate holds Series A

Name	Capacity	Manner of participation	Present for	Interest disclosed
	designee			
Priya Nandakumar	Director, strategic designee	By telephone	Both items	Affiliate holds convertibles
Aurelio Banks	Director, independent	In person	Both items	None disclosed
Lucia Marchetti	Officer, Secretary of the meeting	In person	Both items	Not applicable
Chief Financial Officer	Officer, reporting	In person	Open session only	Not applicable
Whitmore & Lang LLP	Company counsel, by invitation	In person	First item only	Not applicable
Larkspur Valuation Advisors, LLC	Valuation firm, by invitation	By telephone	Second item only	Engagement fee disclosed

3. Materials Circulated in Advance and Read at the Meeting

The Secretary confirmed that the meeting materials had been posted to the directors' portal in advance and that each director had acknowledged receipt. The Chair asked whether any director wished more time with any document before the Board took up the first item; none did. Two directors said they had read the counsel memorandum twice and had marked questions for the first item.

The materials comprised the accommodation request received from counsel to the prospective lead, a memorandum from Whitmore & Lang LLP on the existing preferred stock provisions engaged by that request, a summary of the outstanding convertible instruments prepared by the Chief Financial Officer, the valuation report delivered by Larkspur Valuation Advisors, LLC with its appendices, and the form of resolutions prepared for the Board's consideration.

The Secretary was directed to retain each item in the minute book in the form circulated, together with the acknowledgement log, so that a later reader can establish what the Board had in front of it when it voted rather than inferring it from the resolutions alone.

Exhibit B - Materials distributed to directors before the May meeting

Item	Material circulated	Prepared by	Posted to portal	Retained
B-1	Seniority accommodation request and cover letter	Deverell Roth LLP	Five business days before	Minute book
B-2	Memorandum on preferred stock provisions engaged	Whitmore & Lang LLP	Five business days before	Minute book
B-3	Summary of outstanding convertible instruments	Chief Financial Officer	Four business days before	Minute book
B-4	Independent valuation of the common stock, with appendices	Larkspur Valuation Advisors, LLC	Four business days before	Minute book and valuation file
B-5	Form of resolutions for the two agenda items	Whitmore & Lang LLP	Two business days before	Minute book
B-6	Acknowledgement log of director receipt	Secretary	Maintained continuously	Minute book

4. Report of Counsel on the Accommodation Requested

Counsel to the Company described the request in the terms in which it had been received: that the holders of the existing senior class consent to the issuance of a new series ranking ahead of them on a liquidation, and that the consent be given in advance of the signing of definitive documents so that the prospective lead could complete its own approval process. Counsel identified the charter provisions that require that consent and the class votes needed to give it.

Counsel advised that a consent of this kind may be given for a stated period and that, if it is, the consent expires by its own terms without any further act by the Board or by the consenting holders. Counsel also advised that a consent given for a stated period is a term of the consent itself and is not cured by the later goodwill of the parties; if the period runs out before the financing signs, the consent must be sought again on whatever terms the holders then require.

The Chair asked counsel to confirm that nothing in the requested accommodation committed the Company to any economic term of the proposed financing. Counsel confirmed that the accommodation addresses ranking only, that price, preference and governance remain open, and that the Board would see the definitive documents before any of those terms became binding on the Company.

5. Questions from Directors and the Answers Given

The independent director asked what the Company would lose if the Board declined the request and offered instead a consent conditioned on signing. Counsel answered that the prospective lead had said its investment committee would not clear a financing whose ranking remained contingent, and that a signing condition would therefore probably restart the negotiation rather than preserve it.

The Series A designee asked whether a consent for a stated period would prejudice the consenting holders if the financing closed later on materially different terms. Counsel answered that it would not, because the consent addresses the issuance of a series with the ranking described and no more, and that a different ranking or a different class structure would require a fresh consent.

The Chief Financial Officer was asked how the Company would track the period. The Chief Financial Officer answered that the expiry would be entered in the closing checklist and in the financing calendar on the day the consent was signed, that counsel would receive a standing reminder, and that the expiry would be reported to the Board at each meeting until the financing signed or the period ran.

6. Interests Disclosed and Recusal

The director designated by the strategic investor disclosed that affiliates of that investor hold convertible instruments of the Company that would convert in the proposed financing, and that the ranking of a new senior series could affect the position of those instruments on a liquidation. The disclosure was made before any discussion of the first item and was entered in the record at the director's request. (8 Del. C. § 144)

After discussion, that director elected to recuse from the vote on the first item, left the line while the Board deliberated on it, and rejoined for the second item. The remaining directors confirmed that they had received no instruction from any holder of a convertible instrument and that they considered the request on its merits to the Company.

The Chief Technology Officer disclosed a prior secondary sale of his own shares to an affiliate of a consenting holder. The Board noted the disclosure, determined that the sale gave him no interest in the ranking question, and recorded that he did not recuse and voted on both items.

7. Alternatives Weighed Before the Vote on the First Item

The Board considered granting no consent at all and proceeding to market with a financing that ranked equally with the existing senior class. Management said that two of the four investors then in diligence had already asked for the senior ranking, and that a refusal would narrow the field to those willing to accept parity at a time when the Company's cash runway did not allow a second process.

The Board considered an open-ended consent. The independent director opposed it on the ground that an open-ended consent transfers the whole benefit of delay to the prospective lead, and the Series A designee said the consenting holders would not give one. The Board also considered a consent that renewed automatically unless revoked, and rejected it because a renewal that requires no act is indistinguishable in practice from an open-ended consent.

The Board settled on a consent effective for a stated limited period, on the view that a fixed period gives the prospective lead the certainty it asked for while keeping the Company's freedom to reprice the accommodation if the financing does not sign in time. Counsel was asked to draft the consent so that its expiry is plain on the face of the instrument and requires no calculation by a later reader.

8. Resolutions Adopted on the Seniority Accommodation

On motion duly made and seconded, and with the recusal noted above, the Board resolved to approve the form of consent presented by counsel, to authorize the officers to solicit the class votes the charter requires, and to execute and deliver the consent on behalf of the Company once those votes were obtained. The resolution states that the consent is effective for the limited term recorded in the waiver particulars set out in this record and expires at the end of that term without further action.

The Board further resolved that the expiry of the consent is a condition affecting the Company's ability to close the proposed financing on the ranking described, that the officers shall report the state of the consent to the Board at each

regular meeting until the financing signs, and that no officer may represent to any counterparty that the consent has been extended unless a further consent has been obtained and delivered in writing.

The Board directed that a copy of the executed consent, the class votes obtained in support of it, and the waiver particulars recording its term be filed together in the minute book, and that the closing checklist maintained by counsel show the same term as the instrument so that the two records cannot drift apart.

Exhibit C - Register of resolutions adopted at the May meeting

Resolution	Subject	Moved by	Seconded by	For	Against	Abstained
2026-05-1	Approval of the form of seniority consent	Aurelio Banks	Ingrid Solvang	4	0	0
2026-05-2	Authority to solicit the required class votes	Ingrid Solvang	Aurelio Banks	4	0	0
2026-05-3	Reporting obligation on the state of the consent	Aurelio Banks	Renata Okonjo	4	0	0
2026-05-4	Adoption of the independent valuation report	Renata Okonjo	Aurelio Banks	5	0	0
2026-05-5	Identification of the adopted copy of the report	Aurelio Banks	Priya Nandakumar	5	0	0
2026-05-6	Direction to officers on option pricing	Priya Nandakumar	Renata Okonjo	5	0	0

9. Presentation of the Independent Valuation of the Common Stock

The representative of Larkspur Valuation Advisors, LLC described the engagement, the information relied on, the methods considered and the reason for the weighting applied, and answered questions on the treatment of the outstanding convertible instruments and of the option reserve. The representative confirmed that the firm had received no instruction as to outcome and that management had made no representation about a target value.

The Chair asked the representative to state, for the record, the report date the firm had assigned to the delivered report and the total number of pages the delivered report contains, including its appendices. The representative did so, and the Secretary entered both particulars in the valuation adoption particulars of this record. The representative then left the meeting.

The Board noted that the firm had delivered its work by portal and that at least one further copy of the report was in circulation among the Company's advisers. The independent director observed that a valuation in circulation in more than one copy is worth adopting only if the adopted copy can be identified from the face of the resolution, and asked counsel to draft the resolution accordingly.

10. Resolutions Adopting the Valuation and Identifying the Adopted Copy

On motion duly made and seconded, the Board resolved to accept the report of Larkspur Valuation Advisors, LLC and to adopt the conclusion stated in it as the Board's determination of the fair market value of a share of the Company's common stock for the purposes of granting stock options and other equity awards, and for the purposes of the deferred compensation rules applicable to such grants. (I.R.C. § 409A)

The Board resolved further that the report so adopted is the report bearing the report date and the total page count recited in the valuation adoption particulars of this record, that a copy answering to both of those particulars is the copy of record for all Company purposes, and that a document presented as that report but differing from either particular is not the adopted report and shall not be relied on as such by any officer or adviser of the Company.

The Board directed the Secretary to keep the copy of record in the valuation file with these minutes, to record the particulars in the minute book index so that a later reader can test any copy against them without opening the file, and to report to the Board if a copy differing from the recited particulars is found in circulation. The Board relied on the report as a reasonable application of a reasonable valuation method. (Treas. Reg. § 1.409A-1(b)(5)(iv)(B))

11. Direction to Officers, Closed Session, and Adjournment

The officers were directed to use the adopted conclusion for option grants made after the date of this meeting until a further valuation is adopted or a significant event requires an earlier one, and to bring to the Board any grant proposed on a different basis. The Chief Financial Officer was directed to reflect the adopted particulars in the equity administration records maintained on the Ledgerline platform.

The directors then met in closed session without management present. No resolution was adopted in closed session and no action was taken that requires recording here. The Chair reported at the resumption of the open session only that the directors had discussed the composition of the board under a future financing and had asked counsel for a memorandum.

There being no further business, the meeting was adjourned at 11:40 a.m. Pacific time. The undersigned Secretary of the meeting certifies that this record is a true record of the proceedings, that the exhibits referred to in it are the documents that were before the Board, and that the resolutions recorded in it have not been amended or revoked as of the date of certification.